

Callison, *et al.* v. Ortiz, *et al.*

20CV45077

**DEFENDANTS' MOTION FOR JUDGMENT ON THE
PLEADINGS**

Defendants Rose Ortiz and Daniel Riordan move, pursuant to Code of Civil Procedure section 438, to dismiss Plaintiffs' complaint on the grounds that the first cause of action fails to allege facts sufficient to state a cause of action, is uncertain, or such cause of action does not exist.

Moving parties have failed to comply with Local Rule 3.3.7, enacted January 1, 2018, in that the Notice of Motion does not include the mandatory language regarding the Court's tentative ruling system. Pursuant to said local rule, lack of compliance provides a specific ground to deny any such procedurally-deficient motion. Based solely upon moving parties' failure to comply with Local Rule 3.3.7, the motion is DENIED without prejudice to refile, to the extent it otherwise is timely and appropriate pursuant to relevant statutes.

The clerk shall provide notice of this ruling to the parties forthwith. No further formal order is required.

Krpan, *et al.* v. Slight, *et al.*

20CV44854

**DEFENDANTS' MOTION TO COMPEL RESPONSES TO
DISCOVERY AND PRODUCTION OF DOCUMENTS AND ESI,
AND RELATED DOCUMENTS**

Defendant Terri Bowman moves, pursuant to the Civil Discovery Act, for an order compelling Plaintiff Christopher Krpan to provide responses and produce documents in response to discovery requests propounded on Plaintiff by Defendant and for an award of monetary sanctions on the grounds that Plaintiff failed to serve timely responses to the subject discovery.

Moving party has failed to comply with Local Rule 3.3.7, enacted January 1, 2018, in that the Notice of Motion does not include the mandatory language regarding the Court's tentative ruling system. Pursuant to said local rule, lack of compliance provides a specific ground to deny any such procedurally-deficient motion. Based solely upon moving party's failure to comply with Local Rule 3.3.7, the motion is DENIED without prejudice to refile, to the extent it otherwise is timely and appropriate pursuant to relevant statutes.

The clerk shall provide notice of this ruling to the parties forthwith. No further formal order is required.